

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Kings

Index No.: _____

Date Purchased: _____

SUMMONS

-----X
EDWARD FERNANDEZ,

Plaintiff,

Plaintiff designates Kings
County as the place of
trial.

vs.

The basis of venue is:
Place of Occurrence

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT a/k/a POLICE DEPARTMENT OF THE
CITY OF NEW YORK, POLICE OFFICER LUIS ANTONIO
AND POLICE OFFICERS "JOHN DOE" 1-6, PERSONS
EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT,

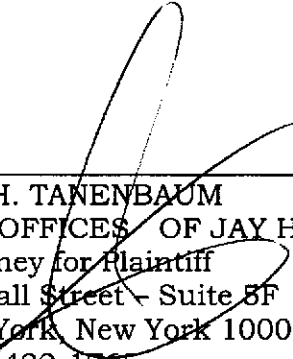
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: :New York, New York
June 13, 2017



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-16J-0105

TO:

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT a/k/a POLICE
DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER LUIS ANTONIO AND
POLICE OFFICERS "JOHN DOE" 1-6, PERSONS EMPLOYED BY NEW YORK CITY
POLICE DEPARTMENT,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Kings

VERIFIED COMPLAINT

-----X
EDWARD FERNANDEZ,

Index No.:
Date Purchased:

Plaintiff,

vs.

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT a/k/a POLICE DEPARTMENT OF THE
CITY OF NEW YORK, POLICE OFFICER LUIS ANTONIO
AND POLICE OFFICERS "JOHN DOE" 1-6, PERSONS
EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT,,

Defendants.

-----X

EDWARD FERNANDEZ (hereinafter the "Plaintiff"), by his attorney, **LAW
OFFICES OF JAY H. TANENBAUM**, complaining against Defendants, CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT a/k/a POLICE DEPARTMENT
OF THE CITY OF NEW YORK, POLICE OFFICER LUIS ANTONIO and NEW YORK
CITY POLICE OFFICERS "JOHN DOES 1- 6", PERSONS EMPLOYED BY NEW
YORK CITY POLICE DEPARTMENT (hereinafter collectively "Defendants") upon
information and belief, alleges as follows:

1. That at all pertinent times, Plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all pertinent times, Defendant City of New York (hereinafter "CITY") was and is a municipal corporation incorporated under the laws of New York State.
3. That at all pertinent times, Defendant New York City Police Department (hereinafter "NYPD") was and is an agency of Defendant CITY.
4. That at all pertinent times, Defendant, Police Officer Luis Antonio (hereinafter the "Police") was and is an employee of Defendant NYPD.

5. That at all pertinent times, Defendants "John Does 1-6" (hereinafter the "Officers") were and are employees of Defendant NYPD.
6. That at all pertinent times, Defendant CITY operated, and presently operates Defendant NYPD.
7. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.
8. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.
9. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Sections 50(e) on or about October 31, 2016. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.
10. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.
11. A hearing has not been conducted pursuant to General Municipal Law Section 50(h). All parties have executed a stipulation that the 50(h) hearing scheduled for February 6, 2017, has been adjourned pending the outcome of the plaintiff's criminal matter.
12. This action is being commenced within one year of the incident which gives rise to the action.

13. On or about October 13, 2016, at or the parking lot of 711 Store located at 301 65th Street, in the County of Kings, City and State of New York. Plaintiff was arrested without probable cause, (hereinafter the "ARREST").

14. During the ARREST, Defendants assaulted and battered Plaintiff.

15. Thereafter, Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated.

16. Said prosecution was instituted with malice and bad faith and deliberate indifference to Plaintiffs rights.

17. At all times during the ARREST, assault and battery of Plaintiff, Plaintiff was in the custody of Defendants.

18. That Plaintiff was illegally and improperly arrested, assaulted and battered by Defendants through no fault or negligence of his own.

19. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND IMPRISONMENT**

20. The allegations set forth in paragraphs "1" through "19" inclusive are incorporated herein as if fully set forth.

21. Defendant, Police, intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.

22. Defendants Officers intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.

23. Defendants knew, or should have known, that the conduct engaged in would result in the false imprisonment of Plaintiff.

24. Plaintiff was aware of such confinement and did not consent to said confinement.

25. The aforementioned confinement was not privileged in any way and was without legal justification.

26. Defendants CITY and NYPD are responsible and liable for the acts of Defendants, Police and Officers, done within the scope of their employment under the doctrine of *respondeat superior*.

27. As a direct and proximate cause of Defendants' false arrest, seizure and imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

28. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY

29. The allegations set forth in paragraphs "1" through "28" inclusive are incorporated herein as if fully set forth.

30. Defendant Police intended to make bodily contact with Plaintiff.

31. Defendants Officers intended to make bodily contact with Plaintiff.

32. Defendant Police knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

33. Defendants Officers knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

34. Defendants, Police and Officers did in fact make offensive, bodily contact with Plaintiff.

35. Plaintiff was aware of such bodily contact and did not consent to said bodily contact.

36. The aforesaid bodily contact by Defendants Police against Plaintiff was offensive to Plaintiff.

37. The aforesaid bodily contact by Defendants Officers against Plaintiff was offensive to Plaintiff.

38. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

39. Defendants CITY and NYPD are responsible and liable for the acts of Defendants, Police and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

40. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

41. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTION DISTRESS

42. The allegations set forth in paragraphs "1" through "41" inclusive are incorporated herein as if fully set forth.

43. That Defendant Police intended to make offensive, bodily contact with Plaintiff.

44. That Defendants Officers intended to make offensive, bodily contact with Plaintiff.

45. That Defendant Police knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

46. That Defendants Officers knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

47. That Defendant Police did in fact make offensive, bodily contact with Plaintiff.

48. That Defendants Officers did in fact make offensive, bodily contact with Plaintiff.

49. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

50. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish which had a disabling effect on Plaintiff.

51. Defendants NYC and NYPD are responsible for and liable for the acts of Defendants, Police and Officers done within the scope of their employment through the doctrine of *respondeat superior*.

52. As a direct and proximate cause of Defendants' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs, all to Plaintiffs damages in the amount which exceeds the jurisdictional limitations of the courts and in an amount to be determined at a trial of this action.

53. That the conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

54. The allegations set forth in paragraphs "1" through "53" inclusive are incorporated herein as if fully set forth.

55. That Defendants CITY and NYPD failed to exercise reasonable care in hiring Defendants, Police and Officers; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in their hiring of employees.

56. That Defendants CITY and NYPD should have known of the propensity of Defendants, Police and Officers to commit injurious acts.

57. That Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants, Police and Officers.

58. Defendants CITY and NYPD are responsible and liable for the acts of Defendants, Police and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

59. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

60. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENCE

61. The allegations set forth in paragraphs "1" through "60" inclusive are incorporated herein as if fully set forth.

62. Defendants' actions in causing the aforesaid assault, battery, arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. Police and Officers acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Officers further breached their duty of care to investigate before affecting the stop and seizure of a citizen and in their continued prosecution of Plaintiff.

63. That Defendants CITY and NYPD are responsible and liable for the acts of Defendants, Police and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

64. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

65. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR VIOLATION OF THE UNITED STATES
CONSTITUTION 42 U.S.C. 1983 AND NEW YORK
CONSTITUTION

66. The allegations set forth in paragraphs "1" through "65" inclusive are incorporated herein as if fully set forth.

67. That it was Defendants' governmental policy, practice and/or procedure regarding the use of force, which contributed to and caused the incident to occur and certain U.S Constitutional deprivations to Plaintiff, including the Fourth, Eighth and Fourteenth Amendments to the Constitution.

68. That there have been patterns and/or series of incidents of unconstitutional conduct which have caused the use of excessive force in similar instances as herein.

69. That Defendants acted recklessly including a general failure to supervise and a failure to select psychologically fit and properly trained employees, including Defendants Officers, to conduct arrests.

70. That Defendants failed to properly and sufficiently train employees including Defendants Officers, in the constitutional use of force and failed to adequately supervise the performance of employees, including Defendants, Police and Officers, to insure those exercising bad judgment in the use of force received corrective training.

71. That Defendants improperly trained employees, including Defendants, Police and Officers, and that this failure to train was a policy of Defendants, and in deliberate indifference to the rights of persons, including Plaintiff.

72. As a direct result of the aforesaid acts, omissions, and policies of Defendants, under color of State Law, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under the United States Constitution and 42 U.S.C. §1983, including but not limited to the Fourth, Eighth, and Fourteenth Amendments.

73. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under the New York Constitution including but not limited to, Article 1, Sections 8 and 12.

74. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York Common Law to be free from false arrest, false imprisonment, assault and battery, and malicious prosecution.

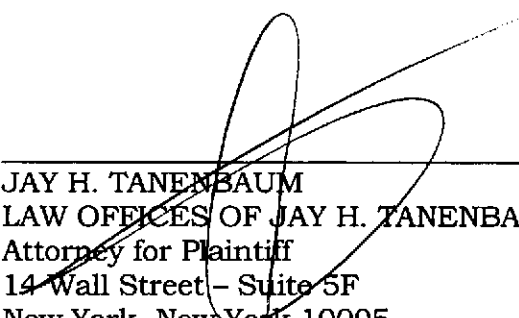
75. As a direct result of the acts, omissions, and policies of Defendants, Defendants acted with deliberate indifference to Plaintiffs constitutional rights in failing to adequately train, supervise, and discipline their employees.

76. As a direct and proximate cause of Defendants' violations of the United States Constitution 42 U.S.C. 1983 and New York Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

77. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiffs attorney's fees.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-6" PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: :New York, New York
June 13, 2017



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-16J-0105

ATTORNEY'S VERIFICATION

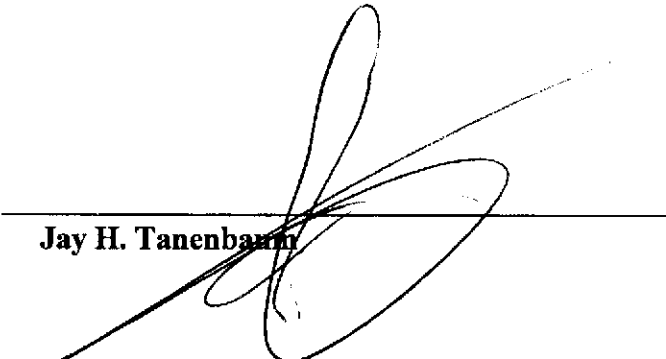
The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

The deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint/bill of particulars and knows the contents thereof; that the same is true to the deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff(s) is that Plaintiff(s) reside(s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

DATED: New York, New York
June 13, 2017



Jay H. Tanenbaum

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

EDWARD FERNANDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT a/k/a POLICE
DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER LUIS ANTONIO AND
POLICE OFFICERS "JOHN DOE" 1-6, PERSONS EMPLOYED BY NEW YORK CITY
POLICE DEPARTMENT,,

Defendant.

SUMMONS AND VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

14 Wall Street - Suite 5F

New York, New York 10005

Tel No.: (212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 13, 2017

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM